

23NWCV01924 23NWCV01924

County: los-angeles

Division: Civil Law and Motion

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Case Number: 23NWCV01924 Hearing Date: August 4, 2026 Dept: SED

ANGELICA GUERRERO, ET AL. V. EAST WHITTIER CITY SCHOOL DISTRICT

CASE NO.: 23NWCV01924

HEARING: August 4,
2026

TENTATIVE ORDER

Petitioner Rasell Chavez's
petition for approval of compromise of claim or action or disposition of
proceeds of judgment for minor and person with a disability Claimant Angelica
Guerrero is CONTINUED to October 1, 2026. Petitioner must cure the deficiencies
identified in this Order a minimum of thirty days prior to the hearing.

Petitioner Rasell Chavez's
(Petitioner) brings this petition as the Guardian ad litem and parent of the
minor and person with disability Angelica Guerrero (Claimant).

Legal Standard

Compromises of disputed
claims brought by minors are governed in part by Code of Civil Procedure
section 372. The statute allows a
guardian ad litem to appear in court on behalf of a minor claimant and gives
the guardian ad litem the power to compromise the minor's claim "with the
approval of the court in which the action or proceeding is pending." A petition for court approval of a compromise
must be verified by the petitioner and must contain a full disclosure of all

information that has any bearing upon the reasonableness of the compromise or covenant. (California Rules of Court (CRC) Rule 7.950.)

CRC Rule 7.952

subdivision (a) requires the attendance of the petitioner and claimant at the hearing on the compromise of the claim unless the court for good cause dispenses with their personal appearance.

CRC Rule 7.955(a)

requires courts to use “a reasonable fee standard” when approving and allowing the amount of attorneys’ fees payable from money to be paid for the benefit of a minor and requires that courts “give consideration to the terms of any representation agreement made between the attorney and the representative of the minor . . . and evaluate the agreement based on the facts and circumstances existing at the time the agreement was made, except where the attorney and the representative of the minor . . . contemplated that the attorneys’ fee would be affected by later events.” CRC Rule 7.955(b) sets

forth fourteen nonexclusive factors the Court may consider in determining a reasonable attorney’s fee. CRC Rule

7.955(c) requires that a petition requesting Court approval and allowance of an attorney’s fee under 7.955(a) must include a declaration from the attorney that addresses the factors listed in 7.955(b) that are applicable to the matter before the Court.

Discussion

General

Requirements

Petitioner has submitted a

Judicial Council form MC-350 on behalf of Claimant, signed by Petitioner. However, Petitioner has not filed a Proposed Order on Form MC-351 (Super. Ct. L.A. County, Local Rules, rule 4.115(c)(1)).

Petition

(Form MC-350)

Item 8 – Extent of Injuries and Recovery

Attachment 8 appears

deficient. Item 8 requires a physician's report containing a diagnosis or prognosis and a report of the claimant's current condition. Although Attachment 8 includes historical medical records, the Court does not see a physician's report addressing the claimant's current condition or expressly stating that Claimant has fully recovered and has no permanent injuries, as represented in Item 8(a). Accordingly, Petitioner shall submit a supplemental physician declaration or medical report addressing Claimant's present condition before the Court will approve the compromise.

Attachments

The Court further notes that several supporting documents were incorrectly labeled. Counsel's declaration in support of the requested attorney's fees was attached as Attachment 18 rather than Attachment 13a, and the agreement for legal services between Petitioner and counsel was attached as Exhibit 1 to Attachment 18 rather than Attachment 17a. Petitioner shall correctly label these attachments in the amended petition. The Court has nevertheless considered the documents as submitted for purposes of the instant petition.

Conclusion

The Court CONTINUES this hearing to October 1, 2026, at 9:30 a.m.. Petitioner must correct the deficiencies identified in this Order a minimum of 30 days prior to the hearing, including filing a proposed order on Judicial Council Form MC-351, submitting a supplemental physician declaration or medical report addressing Claimant's current condition, and correctly labeling the supporting attachments.